



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9901 (EXTENSION)
ORIGINAL June 28, 1988

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9901 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 31 1994

(DATE)

Dist: FHWA FRA USCG

EXEMPTION HOLDER

APPLICATION DATE

J.T. Baker, Inc.
Phillipsburg, NJ

July 19, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.

Expired - No Renewal



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9901

JUN 28 1988

1. J.T. Baker, Inc., Phillipsburg, New Jersey, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of certain oxidizers and/or corrosive materials for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of nitric acid, classed as oxidizer or corrosive material, and perchloric acid, classed as oxidizer, in a DOT Specification 12A fiberboard box, with inside glass bottles cushioned and encapsulated by molded expanded polystyrene inserts, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on J.T. Baker, Incorporated's application dated December 7, 1987, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Nitric Acid, over 40%, classed as oxidizer; Nitric Acid, 40% or less, classed as corrosive material; Perchloric acid, classed as oxidizer.

4. PROPER SHIPPING NAME (49 CFR 172.101). Nitric Acid; Nitric Acid, 40% or less; Perchloric Acid not exceeding 72% strength; Perchloric Acid, not over 50% acid.

5. REGULATION AFFECTED. 49 CFR 173.268; 173.269.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification 12A fiberboard box (half center special slotted container - HCSSC - all top flaps meeting at center, bottom flaps conventional regular slotted container flaps) of 275-pound test, doublewall corrugated fiberboard, with no more than six 2.5-liter glass bottles cushioned and totally encapsulated in inside top and bottom trays of molded expanded polystyrene. Box closed as for shipment must be capable of satisfactorily withstanding the performance tests specified in 49 CFR 178.210-10. The expanded tray must be in accordance with J.T. Baker, Inc. drawings PRG-112 and S-479 on file with the Office of Hazardous Materials Transportation (OHMT). Maximum gross weight is 75 pounds.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

b. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

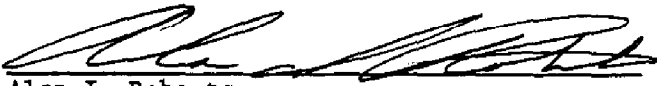
9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMT as soon as practicable.

Continuation of DOT-E 9901

Page 2

10. EXPIRATION DATE. April 30, 1990.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

JUN 2 9 1988

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials
Transportation, Research and Special Programs Administration, U.S.
Department of Transportation, Washington, D.C. 20590. Attention:
Exemptions Branch.

Dist: FHWA, FRA, USOC